

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.
Date Purchased & Filed

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LADYPEARL APONSAH and
AISHA LLEWELLYN,

Plaintiff(s) designate(s)
BRONX
County as the place of trial.

Plaintiff(s),

-against-

Summons

CITY OF NEW YORK, POLICE OFFICER DELWYN DAVIS,
Shield #5739 and "POLICE OFFICER JOHN DOE",
A Currently Unknown Employee of the
New York City Police Department,

The basis of the venue is
Location of Occurrence

Defendant(s).

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Plaintiff(s) reside(s) at 240 Mount Hope Place, Apt. 1C, Bronx, NY 10457
County of Bronx

To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated, New York, New York
December 6, 2017

KRINSKY & MUSUMECI, ESQS., PLLC


JAMES E. GEAR, ESQ.
Attorneys for Plaintiffs
LADYPEARL APONSAH and
AISHA LLEWELLYN
Office and Post Office Address
274 Madison Avenue, Ste. 402
New York, NY 10016
(212) 532-1973

Defendants' addresses:

100 Church Street
New York, NY 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X Index No.:

**LADYPEARL APONSAH
and AISHA LLEWELLYN,****Plaintiffs,****VERIFIED COMPLAINT****- against -****CITY OF NEW YORK, POLICE OFFICER
DELWYN DAVIS, Shield # 5739 and "POLICE
OFFICER JOHN DOE", a Currently Unknown
Employee of the New York City Police Department,****Defendants.**

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Plaintiffs, LADYPEARL APONSAH and AISHA LLEWELLYN, by their attorneys, KRINSKY & MUSUMECI, ESQS, as and for their Verified Complaint, alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST AND WRONGFUL DETENTION
ON BEHALF OF PLAINTIFF LADYPEARL APONSAH**

1. This is a civil rights action in which the plaintiff, LADYPEARL APONSAH, seeks relief for the defendants' violations of his rights secured by the Civil Rights Act of 1871, 42 U.S.C. §1983, of the United States Constitution, including the First, Fourth and Fourteenth Amendments, and by the Laws and Constitution of the State of New York.
2. That at all of the times relevant to this action, the plaintiff, LADYPEARL APONSAH, was, and remains, a resident of the County of Bronx, City and State of New York.
3. That at all of the times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. That at all the times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, maintained, managed, controlled and operated a Police Department within its boundaries and jurisdiction.

5. That at all the times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, maintained, managed, controlled and operated a Police Department within its boundaries and jurisdiction.

6. That at all the times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, maintained, managed, controlled and operated a Police Department within its boundaries and jurisdiction, and which said Police Department employed the defendant, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and "POLICE OFFICER JOHN DOE".

7. That at all of the said times and places hereinafter mentioned, the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and "POLICE OFFICER JOHN DOE", were in the employ of the NEW YORK CITY POLICE DEPARTMENT.

8. That at all of the said times and places hereinafter mentioned, the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and "POLICE OFFICER JOHN DOE", were acting within the scope of their employment with, and under the color of authority of the NEW YORK CITY POLICE DEPARTMENT.

9. That heretofore and on 20th day of December, 2016, in the vicinity of 240 Mount Hope Place, in the County of Bronx, City and State of New York, the plaintiff, LADYPEARL APONSAH, was falsely arrested, and wrongfully detained, by officers of the New York City Police Department, including but not limited to POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", identity currently unknown, and was charged with, *intra alia*, violation of CPL § 155.35 [Grand larceny in the Third Degree].

10. That at the aforesaid time and place, the plaintiff was caused to be detained by officers of the New York City Police Department, including, but not limited to, the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE".

11. That at the aforesaid time and place, the plaintiff was falsely, unjustly and without cause, arrested by said officers, including, but not limited to, defendant, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE".

12. That the aforesaid unlawful detention continued thereafter at the 13th Precinct, 230 East 21st Street, New York, NY 10010 and at Riker's Island.

13. That at all the said times, the aforesaid police officers, including, but not limited to, defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", who detained, and who falsely, unjustly and without cause, arrested this plaintiff were agents, servants and/or employees of the defendant, City of New York.

14. That at all the said times, the aforesaid police officers, including, but not limited to defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", who detained, and who falsely, unjustly and without cause, arrested this plaintiff this plaintiff, were on duty and acting within the course and scope of their employment.

15. That at all the said times, the afore described detainment and false arrest of this plaintiff by officers of the New York City Police Department, including, but not limited to, defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", was without just cause, probable cause or provocation.

16. That the criminal complaint of the said police officer, defendant, POLICE OFFICER DELWYN DAVIS, Shield # 5739, was knowingly written with omissions of exculpatory information and therefore was done with malice

17. That as a result of the foregoing, the defendants, its agents, servants and/or employees violated plaintiff's civil and constitutional rights.

18. That on or about the 19th day of September, 2017 the charges made by the defendants against the plaintiff were terminated in the plaintiff's favor by the dismissal of all charges

19. That the foregoing occurrence was caused wholly, solely or in part by reasons of the carelessness and negligence of the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", their agents, servants and/or employees in and about the operation, maintenance, management and control of its Police Department and members thereof; in giving making false declarations; in that these defendants, their agents, servants and/or employees failed to properly train, supervise and control the actions and activities of the police officers who wrongfully detained, and who falsely, unjustly and without cause, arrested the plaintiff; in that these defendants, their agents, servants and/or employees allowed, suffered, caused and permitted said officers to be, exist and remain as police officers of the New York City Police Department despite due knowledge and notice of their propensities to act without cause; in that these defendants, their agents, servants and/or employees negligently trained, hired and retained said police officers to act on its behalf; in that said police officers wrongfully detained, and falsely, unjustly and without cause, arrested the plaintiff during the course and scope of their employment as police officers for the New York City Police Department acting under color of law; in that these defendants, their agents, servants

and/or employees were otherwise careless and negligent in utter disregard of the rights, safety and well-being of this plaintiff and other persons similarly situated.

20. That this plaintiff did not contribute to the happening of this occurrence nor to the injuries sustained by her by any act or omission on her part.

21. That solely by virtue of the foregoing, this plaintiff was rendered sick, and disabled; she was subjected to great indignities, embarrassment, mental anguish, and was held up to scorn, shame, ridicule and embarrassment and was tormented, abused and humiliated in person and character; she was psychologically and physically injured, and wounded; she sustained a severe shock to her nervous system and suffered intense pain and mental anguish; she was confined in and about her bed and home for a considerable period of time and was incapacitated from attending to her usual vocation; she was obliged to expend diverse sums of money and/or incur obligation for legal defense, medical attention, care, treatment and supplies in an endeavor to cure or lessen the effects of her afore described injuries; the plaintiff was in other respects injured, all to the extent of a sum of damages which exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

22. The plaintiff, LADYPEARL APONSAH, seeks compensatory and punitive damages, an award of costs, interest and attorney's fees, and such other and further relief as this court deems just, proper and equitable.

**AS AND FOR A SECOND CAUSE OF ACTION UNDER THE
FOURTH AND FOURTEENTH AMENDMENTS AND 42 U.S.C. §1983
ON BEHALF OF THE PLAINTIFF LADYPEARL APONSAH**

23. That the plaintiffs repeat, reiterate and re-allege each and every allegation contained in the First Cause of Action of this complaint with the same full force and effect as if they had been repeated at length herein.

24. That at all of the times relevant to this action, the defendant, CITY OF NEW YORK, was and remains a municipal entity created and authorized under the laws of the State of New York, and was and remains authorized to maintain a police department which acts as its agent in the area of law enforcement and for which the defendant, CITY OF NEW YORK, is ultimately responsible.

25. That at all of the times relevant to this action, the defendant, CITY OF NEW YORK, assumes the risks incidental to the maintenance of a police force and the employment of police officers, and the defendant, CITY OF NEW YORK, was at all times relevant to this action the employer of the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", who were the police officers who arrested the plaintiff, LADYPEARL APONSAH.

26. That the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", were, at all of the times relevant to this action, duly appointed and acting police officers, agents, servants and/or employees of the New York City Police Department, and were acting, under the color of the laws, statutes, ordinances, regulations, policies, customs and/or usages of the State of New York and the New York City Police Department; in the course and scope of their duties and function as a police officers, agents, servants and/or employees of the defendant, CITY OF NEW YORK; was acting for and on behalf of, and with the power and authority vested in them by the defendant, CITY OF NEW YORK and the New York City Police Department; was otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties; and are sued herein individually and in their official capacity.

27. That at the time of the aforesaid arrest, and at all times thereafter, the claimant was unjustly and without cause detained, deprived of her liberty; maligned in reputation; verbally harassed, mentally assailed and physically touched against her will and without his consent, by officers of the New York City Police Department, including, but not limited to the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", in violation of claimant's State and Federal Constitutional rights, 42 USC §1983, causing her to sustain injuries, humiliation, embarrassment and expenses.

28. That by the conduct, acts and omissions complained of herein, the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", violated clearly established constitutional standards under the First, Fourth and Fourteenth Amendments to the United States Constitution of which a reasonable police officer under the circumstances would have known.

29. That the conduct of the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", in detaining the plaintiff, LADYPEARL APONSAH, was totally without probable cause, was excessive, and was done maliciously, falsely and in bad faith.

30. That at all of the times relevant to this action, the conduct and actions of the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", acting under color of law, was excessive and unreasonable, was done intentionally, willfully, maliciously, with a deliberate indifference and/or reckless disregard for the natural and probable consequences of their acts, was done without lawful justification or reason, and was designed to and did cause specific and serious physical and emotional pain and suffering in violation of plaintiff's rights as guaranteed under 42 U.S.C. §1983, and the First,

Fourth and Fourteenth Amendments to the United States Constitution, including, but not limited to the right to be free from unreasonable seizure of her person and the right to be free from the use of excessive, unreasonable and unjustified force.

31. That the foregoing occurrence was caused wholly, solely or in part by reasons of the carelessness and negligence of the defendants, CITY OF NEW YORK and the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", their agents, servants and/or employees in and about the operation, maintenance, management and control its Police Department and members thereof; in giving\making false declarations; in that these defendants, their agents, servants and/or employees failed to properly train, supervise and control the actions and activities of the police officers who wrongfully detained, and who falsely, unjustly and without cause, arrested the plaintiff; in that these defendants, their agents, servants and/or employees allowed, suffered, caused and permitted said officers to be, exist and remain as police officers of the New York City Police Department despite due knowledge and notice of their propensities to act without cause; in that these defendants, their agents, servants and/or employees negligently trained, hired and retained said police officers to act on its behalf; in that said police officers wrongfully detained, and falsely, unjustly and without cause, arrested the plaintiff during the course and scope of their employment as police officers for the New York City Police Department acting under color of law; in that these defendants, their agents, servants and/or employees were otherwise careless and negligent in utter disregard of the rights, safety and well-being of this plaintiff and other persons similarly situated.

32. That this plaintiff did not contribute to the happening of this occurrence nor to the injuries sustained by her by any act or omission on her part.

33. That as a direct and proximate result of the foregoing, the plaintiff, LADYPEARL APONSAH, was subjected to great physical and emotional pain and humiliation, was deprived of her liberty, and was otherwise damaged and injured in a sum in excess of the of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of the within matter, together with costs and disbursements of this action.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
MUNICIPAL LIABILITY FOR CONSTITUTIONAL VIOLATIONS
ON BEHALF OF THE PLAINTIFF LADYPEARL APONSAH**

34. That the plaintiffs repeat, reiterate and re-allege each and every allegation contained in the First and Second Causes of Action of this complaint with the same full force and effect as if they had been repeated at length herein.

35. That the defendant, CITY OF NEW YORK, directly caused the constitutional violations suffered by the plaintiff as a result of the conduct of the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", and that the conduct of the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", was a direct result of the policies and practices of the defendant, CITY OF NEW YORK.

36. That at all of the times relevant to this action, the defendant, CITY OF NEW YORK, acting through the New York City Police Department, had in effect policies, practices and customs that condoned and fostered the unconstitutional conduct of the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", and which policies, practices and customs were a direct and proximate cause of the damages and injuries complained of herein.

37. That at all of the times relevant to this action, the defendant, CITY OF NEW YORK, acting through the New York City Police Department and the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", had policies, practices, customs and usages of encouraging and/or tacitly sanctioning the above violations of plaintiff's aforesaid rights; and that upon information and belief, the defendant, CITY OF NEW YORK, acting through the New York City Police Department and the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", planned and implemented a policy, practice, customs and usages for arrests such as made herein, that was designed to, and did, preempt lawful activities by illegally detaining persons such as plaintiff engaged in constitutionally protected activities; using excessive force against persons such as plaintiff engaged in constitutionally protected activities; and falsely arresting persons such as plaintiff engaged in constitutionally protected activities.

38. That at all of the times relevant to this action, the defendant, CITY OF NEW YORK, consciously disregarded the illegality and unconstitutionality of the complained of arrest, detention and use of force, and which was a direct and proximate cause of the damages and injuries complained of herein.

39. That the existence of these unconstitutional customs and policies, specifically as it relates to the use of force, arrest and detention in cases such as this is evidenced by the countless repeat occurrences of similar wrongful conduct in the use of force, arrest and detention of young, minority females, such as plaintiff.

40. That the defendant, CITY OF NEW YORK, knew or should have known of the propensity of the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", to engage in misconduct of the type alleged herein and further that the defendant, CITY OF NEW YORK, was aware of several complaints of police misconduct involving use of force, arrest and detention in cases such as this by the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", and despite such knowledge of prior misconduct, failed to take remedial action.

41. That it was the policy of the defendant, CITY OF NEW YORK, to inadequately and improperly investigate citizen complaints of police misconduct, and acts of misconduct were instead tolerated by defendant, CITY OF NEW YORK, including but not limited to the types of incidents alleged above.

41. That it was the policy of the defendant, CITY OF NEW YORK, to inadequately train, supervise and discipline its police offices, including the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", by failing to adequately discourage further constitutional violations; and that the defendant, CITY OF NEW YORK, require appropriate in-service training or re-training of its police offices, including the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", who were known to have engage in police misconduct as alleged above.

42. That as a result of the above described policies and customs of the defendant, CITY OF NEW YORK, its police offices, including the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

43. That the wrongful policies, practices, customs and/or usages complained of herein, demonstrates a deliberate indifference on the part of the defendant, CITY OF NEW YORK, to the constitutional rights of persons within the City of New York, and were the direct and proximate cause of the violations of plaintiff's rights alleged herein.

44. That as a direct and proximate result of the foregoing, the plaintiff, LADYPEARL APONSAH, was damaged and injured in a sum in excess of the of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of the within matter, together with costs and disbursements of this action.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR VIOLATION OF
ARTICLE 1, SECTION 11 OF THE NEW YORK STATE CONSTITUTION
ON BEHALF OF PLAINTIFF LADYPEARL APONSAH**

45. That the plaintiffs repeat, reiterate and re-allege each and every allegation contained in the First, Second and Third Causes of Action of this complaint with the same full force and effect as if they had been repeated at length herein.

46. That the acts of the defendants, acting under color of law, in arresting the plaintiff was racially motivated and were done without lawful justification, and were designed to, and did, cause specific and serious bodily harm, pain and suffering to the plaintiff in violation of her Constitutional right to equal protection as guaranteed by Article 1, Section 11 of the Constitution of the State of New York.

47. That the foregoing acts and conduct of the defendants were a direct and proximate result of the foregoing, the plaintiff, LADYPEARL APONSAH, was damaged and injured in a sum in excess of the of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of the within matter, together with costs and disbursements of this action.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR VIOLATION OF
ARTICLE 1, SECTION 12 OF THE NEW YORK STATE CONSTITUTION
ON BEHALF OF PLAINTIFF LADYPEARL APONSAH**

48. That the plaintiffs repeat, reiterate and re-allege each and every allegation contained in the First, Second, Third and Fourth Causes of Action of this complaint with the same full force and effect as if they had been repeated at length herein.

49. That the acts of the defendants, acting under color of law, in subjecting the plaintiff to unlawful search and seizure and arrest was done without reasonable suspicion or probable cause and were designed to, and did, cause specific and serious bodily harm, pain and suffering to the plaintiff in violation of her Constitutional right to equal protection as guaranteed by Article 1, Section 12 of the Constitution of the State of New York.

50. That the foregoing acts and conduct of the defendants were a direct and proximate result of the foregoing, the plaintiff, LADYPEARL APONSAH, was damaged and injured in a sum in excess of the of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of the within matter, together with costs and disbursements of this action.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
FALSE ARREST AND WRONGFUL DETENTION
ON BEHALF OF PLAINTIFF AISHA LLEWELLYN**

51. That the plaintiffs repeat, reiterate and re-allege each and every allegation contained in the First, Second, Third, Fourth and Fifth Causes of Action of this complaint with the same full force and effect as if they had been repeated at length herein.

52. That at all of the times relevant to this action, the plaintiff, AISHA LLEWELLYN, was, and remains, a resident of the County of Kings, City and State of New York.

53. This is a civil rights action in which the plaintiff, AISHA LLEWELLYN, seeks relief for the defendants' violations of her rights secured by the Civil Rights Act of 1871, 42 U.S.C. §1983, of the United States Constitution, including the First, Fourth and Fourteenth Amendments, and by the Laws and Constitution of the State of New York.

54. That at all of the times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

55. That at all the times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, maintained, managed, controlled and operated a Police Department within its boundaries and jurisdiction.

56. That at all the times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, maintained, managed, controlled and operated a Police Department within its boundaries and jurisdiction.

57. That at all the times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, maintained, managed, controlled and operated a Police Department within its boundaries and jurisdiction, and which said Police Department employed the defendant, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and "POLICE OFFICER JOHN DOE".

58. That at all of the said times and places hereinafter mentioned, the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and "POLICE OFFICER JOHN DOE", were in the employ of the NEW YORK CITY POLICE DEPARTMENT.

59. That at all of the said times and places hereinafter mentioned, the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and “POLICE OFFICER JOHN DOE”, were acting within the scope of their employment with, and under the color of authority of the NEW YORK CITY POLICE DEPARTMENT.

60. That heretofore and on the 27th day of December, in the vicinity of Linden Boulevard and Thomas S. Boyland Street, in the County of Kings, City and State of New York, the claimant, AISHA LLEWELLYN, was falsely arrested, and wrongfully detained, by officers of the New York City Police Department, including but not limited to POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER “JOHN DOE”, identity currently unknown, and was charged with, *intra alia*, violation of CPL § 155.35 [Grand larceny in the Third Degree].

61. That at the aforesaid time and place, the plaintiff was caused to be detained by officers of the New York City Police Department, including, but not limited to, the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER “JOHN DOE”.

62. That at the aforesaid time and place, the plaintiff was falsely, unjustly and without cause, arrested by said officers, including, but not limited to, defendant, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER “JOHN DOE”.

63. That the aforesaid unlawful detention continued thereafter at the 13th Precinct, 230 East 21st Street, New York, NY 10010 and at Riker’s Island.

64. That at all the said times, the aforesaid police officers, including, but not limited to, defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", who detained, and who falsely, unjustly and without cause, arrested this plaintiff were agents, servants and/or employees of the defendant, City of New York.

65. That at all the said times, the aforesaid police officers, including, but not limited to defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", who detained, and who falsely, unjustly and without cause, arrested this plaintiff this plaintiff, were on duty and acting within the course and scope of their employment.

66. That at all the said times, the afore described detainment and false arrest of this plaintiff by officers of the New York City Police Department, including, but not limited to, defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", was without just cause, probable cause or provocation.

67. That the criminal complaint of the said police officer, defendant, POLICE OFFICER DELWYN DAVIS, Shield # 5739, was knowingly written with omissions of exculpatory information and therefore was done with malice

68. That as a result of the foregoing, the defendants, its agents, servants and/or employees violated plaintiff's civil and constitutional rights.

69. That on or about the 6th day of July, 2017, the charges made by the defendants against the plaintiff were terminated in the plaintiff's favor by the dismissal of all charges.

70. That the foregoing occurrence was caused wholly, solely or in part by reasons of the carelessness and negligence of the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", their agents, servants and/or employees in and about the operation, maintenance, management and control of its Police Department and members thereof; in giving making false declarations; in that these defendants, their agents, servants and/or employees failed to properly train, supervise and control the actions and activities of the police officers who wrongfully detained, and who falsely, unjustly and without cause, arrested the plaintiff; in that these defendants, their agents, servants and/or employees allowed, suffered, caused and permitted said officers to be, exist and remain as police officers of the New York City Police Department despite due knowledge and notice of their propensities to act without cause; in that these defendants, their agents, servants and/or employees negligently trained, hired and retained said police officers to act on its behalf; in that said police officers wrongfully detained, and falsely, unjustly and without cause, arrested the plaintiff during the course and scope of their employment as police officers for the New York City Police Department acting under color of law; in that these defendants, their agents, servants and/or employees were otherwise careless and negligent in utter disregard of the rights, safety and well-being of this plaintiff and other persons similarly situated.

71. That this plaintiff did not contribute to the happening of this occurrence nor to the injuries sustained by her by any act or omission on her part.

72. That solely by virtue of the foregoing, this plaintiff was rendered sick, and disabled; she was subjected to great indignities, embarrassment, mental anguish, and was held up to scorn, shame, ridicule and embarrassment and was tormented, abused and humiliated in person and character; she was psychologically and physically injured, and wounded; she sustained a severe shock

to her nervous system and suffered intense pain and mental anguish; she was confined in and about her bed and home for a considerable period of time and was incapacitated from attending to her usual vocation; she was obliged to expend diverse sums of money and/or incur obligation for legal defense, medical attention, care, treatment and supplies in an endeavor to cure or lessen the effects of her afore described injuries; the plaintiff was in other respects injured, all to the extent of a sum of damages which exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

73. The plaintiff, AISHA LLEWELLYN, seeks compensatory and punitive damages, an award of costs, interest and attorney's fees, and such other and further relief as this court deems just, proper and equitable.

**AS AND FOR A SEVENTH CAUSE OF ACTION UNDER THE
FOURTH AND FOURTEENTH AMENDMENTS AND 42 U.S.C. §1983
ON BEHALF OF THE PLAINTIFF AISHA LLEWELLYN**

74. That the plaintiffs repeat, reiterate and re-allege each and every allegation contained in the First, Second, Third, Fourth, Fifth and Sixth Causes of Action of this complaint with the same full force and effect as if they had been repeated at length herein.

75. That at all of the times relevant to this action, the defendant, CITY OF NEW YORK, was and remains a municipal entity created and authorized under the laws of the State of New York, and was and remains authorized to maintain a police department which acts as its agent in the area of law enforcement and for which the defendant, CITY OF NEW YORK, is ultimately responsible.

76. That at all of the times relevant to this action, the defendant, CITY OF NEW YORK, assumes the risks incidental to the maintenance of a police force and the employment of police officers, and the defendant, CITY OF NEW YORK, was at all times relevant to this action the employer of the defendants, POLICE OFFICER DELWYN DAVIS,

Shield # 5739 and POLICE OFFICER "JOHN DOE", who were the police officers who arrested the plaintiff, AISHA LLEWELLYN.

77. That the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", were, at all of the times relevant to this action, duly appointed and acting police officers, agents, servants and/or employees of the New York City Police Department, and were acting, under the color of the laws, statutes, ordinances, regulations, policies, customs and/or usages of the State of New York and the New York City Police Department; in the course and scope of their duties and function as a police officers, agents, servants and/or employees of the defendant, CITY OF NEW YORK; was acting for and on behalf of, and with the power and authority vested in them by the defendant, CITY OF NEW YORK and the New York City Police Department; was otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties; and are sued herein individually and in their official capacity.

78. That at the time of the aforesaid arrest, and at all times thereafter, the claimant was unjustly and without cause detained, deprived of her liberty; maligned in reputation; verbally harassed, mentally assailed and physically touched against her will and without her consent, by officers of the New York City Police Department, including, but not limited to the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", in violation of claimant's State and Federal Constitutional rights, 42 USC §1983, causing her to sustain injuries, humiliation, embarrassment and expenses.

79. That by the conduct, acts and omissions complained of herein, the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", violated clearly established constitutional standards under the First, Fourth and Fourteenth Amendments to the United States Constitution of which a reasonable police officer under the circumstances would have known.

80. That the conduct of the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", in detaining the plaintiff, AISHA LLEWELLYN, was totally without probable cause, was excessive, and was done maliciously, falsely and in bad faith.

81. That at all of the times relevant to this action, the conduct and actions of the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", acting under color of law, was excessive and unreasonable, was done intentionally, willfully, maliciously, with a deliberate indifference and/or reckless disregard for the natural and probable consequences of their acts, was done without lawful justification or reason, and was designed to and did cause specific and serious physical and emotional pain and suffering in violation of plaintiff's rights as guaranteed under 42 U.S.C. §1983, and the First, Fourth and Fourteenth Amendments to the United States Constitution, including, but not limited to the right to be free from unreasonable seizure of her person and the right to be free from the use of excessive, unreasonable and unjustified force.

82. That the foregoing occurrence was caused wholly, solely or in part by reasons of the carelessness and negligence of the defendants, CITY OF NEW YORK and the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", their agents, servants and/or employees in and about the operation, maintenance,

management and control its Police Department and members thereof; in giving\making false declarations; in that these defendants, their agents, servants and/or employees failed to properly train, supervise and control the actions and activities of the police officers who wrongfully detained, and who falsely, unjustly and without cause, arrested the plaintiff; in that these defendants, their agents, servants and/or employees allowed, suffered, caused and permitted said officers to be, exist and remain as police officers of the New York City Police Department despite due knowledge and notice of their propensities to act without cause; in that these defendants, their agents, servants and/or employees negligently trained, hired and retained said police officers to act on its behalf; in that said police officers wrongfully detained, and falsely, unjustly and without cause, arrested the plaintiff during the course and scope of their employment as police officers for the New York City Police Department acting under color of law; in that these defendants, their agents, servants and/or employees were otherwise careless and negligent in utter disregard of the rights, safety and well-being of this plaintiff and other persons similarly situated.

83. That this plaintiff did not contribute to the happening of this occurrence nor to the injuries sustained by her by any act or omission on her part.

84. That as a direct and proximate result of the foregoing, the plaintiff, AISHA LLEWELLYN, was subjected to great physical and emotional pain and humiliation, was deprived of her liberty, and was otherwise damaged and injured in a sum in excess of the of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of the within matter, together with costs and disbursements of this action.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
MUNICIPAL LIABILITY FOR CONSTITUTIONAL VIOLATIONS
ON BEHALF OF THE PLAINTIFF LADYPEARL APONSAH**

85. That the plaintiffs repeat, reiterate and re-allege each and every allegation contained in the First, Second, Third, Fourth, Fifth, Sixth and Seventh Causes of Action of this complaint with the same full force and effect as if they had been repeated at length herein.

86. That the defendant, CITY OF NEW YORK, directly caused the constitutional violations suffered by the plaintiff as a result of the conduct of the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", and that the conduct of the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", was a direct result of the policies and practices of the defendant, CITY OF NEW YORK.

87. That at all of the times relevant to this action, the defendant, CITY OF NEW YORK, acting through the New York City Police Department, had in effect policies, practices and customs that condoned and fostered the unconstitutional conduct of the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", and which policies, practices and customs were a direct and proximate cause of the damages and injuries complained of herein.

88. That at all of the times relevant to this action, the defendant, CITY OF NEW YORK, acting through the New York City Police Department and the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", had policies, practices, customs and usages of encouraging and/or tacitly sanctioning the above violations of plaintiff's aforesaid rights; and that upon information and belief, the defendant, CITY OF NEW YORK, acting through the New York City Police Department and the

defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER “JOHN DOE”, planned and implemented a policy, practice, customs and usages for arrests such as made herein, that was designed to, and did, preempt lawful activities by illegally detaining persons such as plaintiff engaged in constitutionally protected activities; using excessive force against persons such as plaintiff engaged in constitutionally protected activities; and falsely arresting persons such as plaintiff engaged in constitutionally protected activities.

89. That at all of the times relevant to this action, the defendant, CITY OF NEW YORK, consciously disregarded the illegality and unconstitutionality of the complained of arrest, detention and use of force, and which was a direct and proximate cause of the damages and injuries complained of herein.

90. That the existence of these unconstitutional customs and policies, specifically as it relates to the use of force, arrest and detention in cases such as this is evidenced by the countless repeat occurrences of similar wrongful conduct in the use of force, arrest and detention of young, minority females, such as plaintiff.

91. That the defendant, CITY OF NEW YORK, knew or should have known of the propensity of the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER “JOHN DOE”, to engage in misconduct of the type alleged herein and further that the defendant, CITY OF NEW YORK, was aware of several complaints of police misconduct involving use of force, arrest and detention in cases such as this by the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER “JOHN DOE”, and despite such knowledge of prior misconduct, failed to take remedial action.

92. That it was the policy of the defendant, CITY OF NEW YORK, to inadequately and improperly investigate citizen complaints of police misconduct, and acts of misconduct were instead tolerated by defendant, CITY OF NEW YORK, including but not limited to the types of incidents alleged above.

93. That it was the policy of the defendant, CITY OF NEW YORK, to inadequately train, supervise and discipline its police offices, including the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", by failing to adequately discourage further constitutional violations; and that the defendant, CITY OF NEW YORK, require appropriate in-service training or re-training of its police offices, including the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", who were known to have engage in police misconduct as alleged above.

94. That as a result of the above described policies and customs of the defendant, CITY OF NEW YORK, its police offices, including the defendants, POLICE OFFICER DELWYN DAVIS, Shield # 5739 and POLICE OFFICER "JOHN DOE", believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

95. That the wrongful policies, practices, customs and/or usages complained of herein, demonstrates a deliberate indifference on the part of the defendant, CITY OF NEW YORK, to the constitutional rights of persons within the City of New York, and were the direct and proximate cause of the violations of plaintiff's rights alleged herein.

96. That as a direct and proximate result of the foregoing, the plaintiff, AISHA LLEWELLYN, was damaged and injured in a sum in excess of the of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of the within matter, together with costs and disbursements of this action.

**AS AND FOR A NINTH CAUSE OF ACTION FOR VIOLATION OF
ARTICLE 1, SECTION 11 OF THE NEW YORK STATE CONSTITUTION
ON BEHALF OF PLAINTIFF AISHA LLEWELLYN**

97. That the plaintiffs repeat, reiterate and re-allege each and every allegation contained in the First, Second, Third, Fourth, Fifth, Sixth, Seventh and Eighth Causes of Action of this complaint with the same full force and effect as if they had been repeated at length herein.

98. That the acts of the defendants, acting under color of law, in arresting the plaintiff was racially motivated and were done without lawful justification, and were designed to, and did, cause specific and serious bodily harm, pain and suffering to the plaintiff in violation of her Constitutional right to equal protection as guaranteed by Article 1, Section 11 of the Constitution of the State of New York.

99. That the foregoing acts and conduct of the defendants were a direct and proximate result of the foregoing, the plaintiff, AISHA LLEWELLYN, was damaged and injured in a sum in excess of the of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of the within matter, together with costs and disbursements of this action.

**AS AND FOR A TENTH CAUSE OF ACTION FOR VIOLATION OF
ARTICLE 1, SECTION 12 OF THE NEW YORK STATE CONSTITUTION
ON BEHALF OF PLAINTIFF AISHA LLEWELLYN**

100. That the plaintiffs repeat, reiterate and re-allege each and every allegation contained in the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth and Ninth Causes of Action of this complaint with the same full force and effect as if they had been repeated at length herein.

101. That the acts of the defendants, acting under color of law, in subjecting the plaintiff to unlawful search and seizure and arrest was done without reasonable suspicion or probable cause and were designed to, and did, cause specific and serious bodily harm, pain and suffering to the plaintiff in violation of his Constitutional right to equal protection as guaranteed by Article 1, Section 12 of the Constitution of the State of New York.

102. That the foregoing acts and conduct of the defendants were a direct and proximate result of the foregoing, the plaintiff, AISHA LLEWELLYN, was damaged and injured in a sum in excess of the of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of the within matter, together with costs and disbursements of this action.

CONDITIONS PRECEDENT

103. That on the 1st day of November, 2017, the plaintiff, LADYPEARL APONSAH, presented, served and filed a notice of claim with intention to sue thereon upon the Comptroller of the City of New York.

104. That on the 4th day of October, 2017, the plaintiff, AISHA LLEWELLYN, presented, served and filed a notice of claim with intention to sue thereon upon the Comptroller of the City of New York.

105. That more than 30 days have elapsed and expired since the presentation of each of the notice of claims and intention to sue, and the Comptroller of the City of New York has not requested that either plaintiff attend an oral hearing.

106. That more than 30 days have elapsed and expired since the presentation of the notice of claim and intention to sue, and the Comptroller of the City of New York have failed and neglected to pay or adjust the said claim or any part thereof.

107. That the plaintiffs have presented, served and filed their Notices of Claim and Intention to Sue thereon, as aforesaid, within 90 days after the date of the occurrence herein.

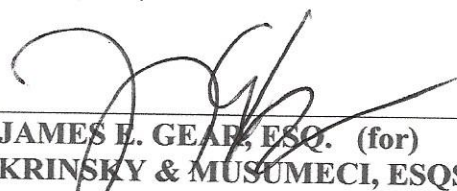
108. That this action was commenced within one year and 90 days since the happening of this accident and occurrence.

109. That the plaintiffs have, prior to the commencement of this action, complied with all of the provisions of law in such cases made and provided.

WHEREFORE, the plaintiff demands judgment against the defendants on the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, Ninth and Tenth Causes of Action in a sum of damages in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of the within matter, together with costs and disbursements of this action.

Dated: New York, New York
December 5, 2017

Yours, etc.,



JAMES E. GEAR, ESQ. (for)
KRINSKY & MUSUMECI, ESQS, PLLC
Attorneys for plaintiffs
LADYPEARL APONSAH
and AISHA LLEWELLYN
274 Madison Avenue – Suite 402
New York, New York 10016
(212) 532-1973

VERIFICATION

STATE OF NEW YORK)

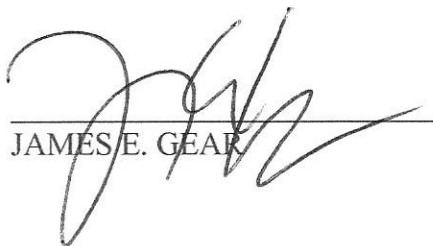
COUNTY OF NEW YORK) ss.:

JAMES E. GEAR, an attorney duly admitted to practice law in the Courts of the State of New York, and an associate with the firm of KRINSKY & MUSUMECI, ESQS, PLLC, the attorneys of record for the plaintiff(s) in the within action affirms as follows; that I have read the foregoing COMPLAINT, and knows the contents thereof; that the same is true to your affirmant's own knowledge, except as to those matters said to be upon information and belief and as to those matters, your affirmant believes them to be true.

This verification is made by affirmant because the plaintiff(s) do\does not reside in County where affirmant has his office.

The grounds of affirmant's belief as to matters not stated upon affirmant's own knowledge are as follows: Statements made by plaintiff(s) and information in affirmant's file.

Dated: New York, New York
November 5, 2017



JAMES E. GEAR

INDEX NO.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

LADYPEARL APONSAH and
AISHA LLEWELLYN,

Plaintiff(s),

-against-

CITY OF NEW YORK, POLICE OFFICER DELWYN DAVIS,
Shield #5739 and "POLICE OFFICER JOHN DOE",
A Currently Unknown Employee of the
New York City Police Department,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

KRINSKY & MUSUMECI, ESQS., PLLC

Attorneys for PLAINTIFFS

LADYPEARL APONSAH and AISHA LLEWELLYN

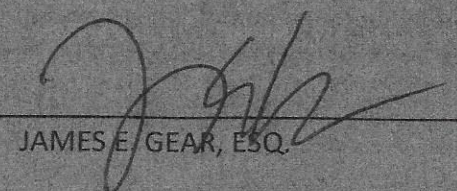
Office and Post Office Address, Telephone

274 MADISON AVENUE, STE. 402

NEW YORK, NY 10016

(212) 532-1973

Signature (Rule 130-1.1-a)


JAMES E. GEAR, ESQ.

Yours, etc.

KRINSKY & MUSUMECI, ESQS.